

Opinion of KAGAN, J.

yes, they are. Almost *all* independent agencies are controversial, no matter how many directors they have. Or at least controversial among Presidents and their lawyers. That's because whatever might be said in their favor, those agencies divest the President of some removal power. If signing statements and veto threats made independent agencies unconstitutional, quite a few wouldn't pass muster. Maybe that's what the majority really wants (I wouldn't know)—but it can't pretend the disputes surrounding these agencies had anything to do with whether their heads are singular or plural.

Still more important, novelty is not the test of constitutionality when it comes to structuring agencies. See *Mistretta v. United States*, 488 U. S. 361, 385 (1989) (“[M]ere anomaly or innovation” does not violate the separation of powers). Congress regulates in that sphere under the Necessary and Proper Clause, not (as the majority seems to think) a Rinse and Repeat Clause. See *supra*, at 266. The Framers understood that new times would often require new measures, and exigencies often demand innovation. See *McCulloch*, 4 Wheat., at 415; *supra*, at 284. In line with that belief, the history of the administrative sphere—its rules, its practices, its institutions—is replete with experiment and change. See *supra*, at 269–276. Indeed, each of the agencies the majority says now fits within its “exceptions” was once new; there is, as the saying goes, “a first time for everything.” *National Federation of Independent Business v. Sebelius*, 567 U. S. 519, 549 (2012). So even if the CFPB differs from its forebears in having a single director, that departure is not itself “telling” of a “constitutional problem.” *Ante*, at 220. In deciding what *this* moment demanded, Congress had no obligation to make a carbon copy of a design from a bygone era.

And Congress's choice to put a single director, rather than a multimember commission, at the CFPB's head violates no principle of separation of powers. The purported constitu-

tional problem here is that an official has “slip[ped] from the Executive’s control” and “supervision”—that he has become unaccountable to the President. *Ante*, at 225, 226 (internal quotation marks omitted). So to make sense on the majority’s own terms, the distinction between singular and plural agency heads must rest on a theory about why the former more easily “slip” from the President’s grasp. But the majority has nothing to offer. In fact, the opposite is more likely to be true: To the extent that such matters are measurable, individuals are easier than groups to supervise.

To begin with, trying to generalize about these matters is something of a fool’s errand. Presidential control, as noted earlier, can operate through many means—removal to be sure, but also appointments, oversight devices (*e. g.*, centralized review of rulemaking or litigating positions), budgetary processes, personal outreach, and more. See *Free Enterprise Fund*, 561 U. S., at 524 (BREYER, J., dissenting); *supra*, at 283–284.¹³ The effectiveness of each of those control mechanisms, when present, can then depend on a multitude of agency-specific practices, norms, rules, and organizational

¹³ To use one important example, Congress provided for executive oversight of all the CFPB’s rulemaking. The Financial Stability Oversight Council can veto by a two-thirds vote any CFPB regulation it deems a threat to the “safety and soundness” of the financial system. 12 U.S.C. § 5513(a). The FSOC is chaired by the Treasury Secretary, and most of its members are under the direct supervision of the President. See § 5321. So the majority is wrong in saying that the CFPB’s Director can “*unilaterally*” issue final regulations. *Ante*, at 225 (emphasis in original). Indeed, the President has more control over rulemaking at the CFPB than at any similar independent agency. And the majority is similarly wrong to think that because the FSOC has not yet issued a formal veto, its review authority makes no practical difference. See *ante*, at 226, n. 9. Regulatory review, whether by the Office of Management and Budget or the FSOC, usually relies more on the threat of vetoes than on their execution. OMB casts a long shadow over rulemaking in the Executive Branch, but rarely uses its veto pen. See Sunstein, *The Office of Information and Regulatory Affairs: Myths and Realities*, 126 Harv. L. Rev. 1838, 1846–1847, n. 37 (2013).

Opinion of KAGAN, J.

features. In that complex stew, the difference between a singular and plural agency head will often make not a whit of difference. Or to make the point more concrete, a multimember commission may be harder to control than an individual director for a host of reasons unrelated to its plural character. That may be so when the two are subject to the same removal standard, or even when the individual director has greater formal job protection. Indeed, the very category of multimember commissions breaks apart under inspection, spoiling the majority's essential dichotomy. See generally Brief for Rachel E. Barkow et al. as *Amici Curiae*. Some of those commissions have chairs appointed by the President; others do not. Some of those chairs are quite powerful; others are not. Partisan-balance requirements, term length, voting rules, and more—all vary widely, in ways that make a significant difference to the ease of presidential control. Why, then, would anyone distinguish along a simple commission/single-director axis when deciding whether the Constitution requires at-will removal?

But if the demand is for generalization, then the majority's distinction cuts the opposite way: More powerful control mechanisms are needed (if anything) for commissions. Holding everything else equal, those are the agencies more likely to “slip from the Executive's control.” *Ante*, at 226. Just consider your everyday experience: It's easier to get one person to do what you want than a gaggle. So too, you know exactly whom to blame when an individual—but not when a group—does a job badly. The same is true in bureaucracies. A multimember structure reduces accountability to the President because it's harder for him to oversee, to influence—or to remove, if necessary—a group of five or more commissioners than a single director. Indeed, that is *why* Congress so often resorts to hydra-headed agencies. “[M]ultiple membership,” an influential Senate Report concluded, is “a buffer against Presidential control” (especially when combined, as it often is, with partisan-balance requirements). Senate

Committee on Governmental Affairs, Study on Federal Regulation, S. Doc. No. 95–91, vol. 5, p. 75 (1977). So, for example, Congress constructed the Federal Reserve as it did because it is “easier to protect a board from political control than to protect a single appointed official.” R. Cushman, *The Independent Regulatory Commissions* 153 (1941).¹⁴ It is hard to know why Congress did not take the same tack when creating the CFPB. But its choice brought the agency only closer to the President—more exposed to his view, more subject to his sway. In short, the majority gets the matter backward: Where presidential control is the object, better to have one than many.

Because it has no answer on that score, the majority slides to a different question: Assuming presidential control of any independent agency is vanishingly slim, is a single-head or a multi-head agency more capable of exercising power, and so of endangering liberty? See *ante*, at 222–225. The majority says a single head is the greater threat because he may wield power “*unilaterally*” and “[w]ith no colleagues to persuade.” *Ante*, at 225 (emphasis in original). So the CFPB falls victim to what the majority sees as a constitutional anti-power-concentration principle (with an exception for the President).

If you’ve never heard of a statute being struck down on that ground, you’re not alone. It is bad enough to “extrapolat[e]” from the “general constitutional language” of Article II’s Vesting Clause an unrestricted removal power constrain-

¹⁴I could go on. A recent study prepared for the Administrative Conference of the United States noted that “[g]overnance by multiple members limits the President’s influence.” J. Selin & D. Lewis, *Sourcebook of United States Executive Agencies* 89 (2d ed. 2018). And the General Accounting Office has recognized that the desire for “greater independence” is what “most likely explains why the Congress in the past has opted to head independent regulatory bodies with multimember commissions rather than single administrators.” Hearing before the Senate Subcommittee on the Consumer of the Committee on Commerce, Science, and Transportation, 100th Cong., 1st Sess., 135 (1987) (Statement of F. Frazier).

Opinion of KAGAN, J.

ing Congress's ability to legislate under the Necessary and Proper Clause. *Morrison*, 487 U. S., at 690, n. 29; see *supra*, at 267. It is still worse to extrapolate from the Constitution's general structure (division of powers) and implicit values (liberty) a limit on Congress's express power to create administrative bodies. And more: to extrapolate from such sources a distinction as prosaic as that between the SEC and the CFPB—*i. e.*, between a multi-headed and single-headed agency. That is, to adapt a phrase (or two) from our precedent, “more than” the emanations of “the text will bear.” *Morrison*, 487 U. S., at 690, n. 29. By using abstract separation-of-powers arguments for such purposes, the Court “appropriate[s]” the “power delegated to Congress by the Necessary and Proper Clause” to compose the government. Manning, Foreword: The Means of Constitutional Power, 128 Harv. L. Rev. 1, 78 (2014). In deciding for itself what is “proper,” the Court goes beyond its own proper bounds.

And in doing so, the majority again reveals its lack of interest in how agencies work. First, the premise of the majority's argument—that the CFPB head is a mini-dictator, not subject to meaningful presidential control, see *ante*, at 224–225—is wrong. As this Court has seen in the past, independent agencies are not fully independent. A for-cause removal provision, as noted earlier, leaves “ample” control over agency heads in the hands of the President. *Morrison*, 487 U. S., at 692; see *supra*, at 279–280. He can discharge them for failing to perform their duties competently or in accordance with law, and so ensure that the laws are “faithfully executed.” U. S. Const., Art. II, § 3; see *supra*, at 268, 280. And he can use the many other tools attached to the Office of the Presidency—including in the CFPB's case, rulemaking review—to exert influence over discretionary policy calls. See *supra*, at 292, and n. 13. Second, the majority has nothing but intuition to back up its essentially functionalist claim that the CFPB would be less capable of exercising power if

it had more than one Director (even supposing that were a suitable issue for a court to address). *Ante*, at 222–225. Maybe the CFPB would be. Or maybe not. Although a multimember format tends to frustrate the President’s control over an agency, see *supra*, at 293–294, it may not lessen the agency’s own ability to act with decision and dispatch. (Consider, for a recent example, the Federal Reserve Board.) That effect presumably would depend on the agency’s internal organization, voting rules, and similar matters. At the least: If the Court is going to invalidate statutes based on empirical assertions like this one, it should offer some empirical support. It should not pretend that its assessment that the CFPB wields more power more dangerously than the SEC comes from someplace in the Constitution. But today the majority fails to accord even that minimal respect to Congress.

III

Recall again how this dispute got started. In the midst of the Great Recession, Congress and the President came together to create an agency with an important mission. It would protect consumers from the reckless financial practices that had caused the then-ongoing economic collapse. Not only Congress but also the President thought that the new agency, to fulfill its mandate, needed a measure of independence. So the two political branches, acting together, gave the CFPB Director the same job protection that innumerable other agency heads possess. All in all, those branches must have thought, they had done a good day’s work. Relying on their experience and knowledge of administration, they had built an agency in the way best suited to carry out its functions. They had protected the public from financial chicanery and crisis. They had governed.

And now consider how the dispute ends—with five unelected judges rejecting the result of that democratic process. The outcome today will not shut down the CFPB: A different majority of this Court, including all those who join

Opinion of KAGAN, J.

this opinion, believes that *if* the agency's removal provision is unconstitutional, it should be severed. But the majority on constitutionality jettisons a measure Congress and the President viewed as integral to the way the agency should operate. The majority does so even though the Constitution grants to Congress, acting with the President's approval, the authority to create and shape administrative bodies. And even though those branches, as compared to courts, have far greater understanding of political control mechanisms and agency design.

Nothing in the Constitution requires that outcome; to the contrary. "While the Constitution diffuses power the better to secure liberty, it also contemplates that practice will integrate the dispersed powers into a workable government." *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U. S. 579, 635 (1952) (Jackson, J., concurring). The Framers took pains to craft a document that would allow the structures of governance to change, as times and needs change. The Constitution says only a few words about administration. As Chief Justice Marshall wrote: Rather than prescribing "immutable rules," it enables Congress to choose "the means by which government should, in all future time, execute its powers." *McCulloch*, 4 Wheat., at 415. It authorizes Congress to meet new exigencies with new devices. So Article II does not generally prohibit independent agencies. Nor do any supposed structural principles. Nor do any odors wafting from the document. Save for when those agencies impede the President's performance of his own constitutional duties, the matter is left up to Congress.

Our history has stayed true to the Framers' vision. Congress has accepted their invitation to experiment with administrative forms—nowhere more so than in the field of financial regulation. And this Court has mostly allowed it to do so. The result is a broad array of independent agencies, no two exactly alike but all with a measure of insulation from the President's removal power. The Federal Reserve

Board; the FTC; the SEC; maybe some you've never heard of. As to each, Congress thought that formal job protection for policymaking would produce regulatory outcomes in greater accord with the long-term public interest. Congress may have been right; or it may have been wrong; or maybe it was some of both. No matter—the branches accountable to the people have decided how the people should be governed.

The CFPB should have joined the ranks. Maybe it will still do so, even under today's opinion: The Court tells Congress that it may "pursu[e] alternative responses" to the identified constitutional defect—"for example, converting the CFPB into a multimember agency." *Ante*, at 237. But there was no need to send Congress back to the drawing board. The Constitution does not distinguish between single-director and multimember independent agencies. It instructs Congress, not this Court, to decide on agency design. Because this Court ignores that sensible—indeed, that obvious—division of tasks, I respectfully dissent.

Syllabus

JUNE MEDICAL SERVICES L. L. C. ET AL. *v.* RUSSO,
INTERIM SECRETARY, LOUISIANA DEPARTMENT
OF HEALTH AND HOSPITALSCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FIFTH CIRCUIT

No. 18–1323. Argued March 4, 2020—Decided June 29, 2020*

Louisiana’s Act 620, which is almost word-for-word identical to the Texas “admitting privileges” law at issue in *Whole Woman’s Health v. Hellerstedt*, 579 U. S. 582, requires any doctor who performs abortions to hold “active admitting privileges at a hospital . . . located not further than thirty miles from the location at which the abortion is performed or induced,” and defines “active admitting privileges” as being “a member in good standing” of the hospital’s “medical staff . . . with the ability to admit a patient and to provide diagnostic and surgical services to such patient.”

In these consolidated cases, five abortion clinics and four abortion providers challenged Act 620 before it was to take effect, alleging that it was unconstitutional because (among other things) it imposed an undue burden on the right of their patients to obtain an abortion. (The plaintiff providers and two additional doctors are referred to as Does 1 through 6.) The plaintiffs asked for a temporary restraining order (TRO), followed by a preliminary injunction to prevent the law from taking effect. The defendant (State) opposed the TRO request but also urged the court not to delay ruling on the preliminary injunction motion, asserting that there was no doubt about the physicians’ standing. Rather than staying the Act’s effective date, the District Court provisionally forbade the State to enforce the Act’s penalties, while directing the plaintiff doctors to continue to seek privileges and to keep the court apprised of their progress. Several months later, after a 6-day bench trial, the District Court declared Act 620 unconstitutional on its face and preliminarily enjoined its enforcement. On remand in light of *Whole Woman’s Health*, the District Court ruled favorably on the plaintiffs’ request for a permanent injunction on the basis of the record previously developed, finding, among other things, that the law offers no significant

*Together with No. 18–1460, *Russo, Interim Secretary, Louisiana Department of Health and Hospitals v. June Medical Services L. L. C. et al.*, also on certiorari to the same court.

Syllabus

health benefit; that conditions on admitting privileges common to hospitals throughout the State have made and will continue to make it impossible for abortion providers to obtain conforming privileges for reasons that have nothing to do with the State's asserted interests in promoting women's health and safety; and that this inability places a substantial obstacle in the path of women seeking an abortion. The court concluded that the law imposes an undue burden and is thus unconstitutional. The Fifth Circuit reversed, agreeing with the District Court's interpretation of the standards that apply to abortion regulations, but disagreeing with nearly every one of the District Court's factual findings.

Held: The judgment is reversed.

905 F. 3d 787, reversed.

JUSTICE BREYER, joined by JUSTICE GINSBURG, JUSTICE SOTOMAYOR, and JUSTICE KAGAN, concluded:

1. The State's unmistakable concession of standing as part of its effort to obtain a quick decision from the District Court on the merits of the plaintiffs' undue-burden claims and a long line of well-established precedents foreclose its belated challenge to the plaintiffs' standing in this Court. Pp. 316–320.

2. Given the District Court's factual findings and precedents, particularly *Whole Woman's Health*, Act 620 violates the Constitution. Pp. 321–344.

(a) Under the applicable constitutional standards set forth in the Court's earlier abortion-related cases, particularly *Planned Parenthood of Southeastern Pa. v. Casey*, 505 U. S. 833, and *Whole Woman's Health*, “[u]nnecessary health regulations that have the purpose or effect of presenting a substantial obstacle to a woman seeking an abortion impose an undue burden on the right” and are therefore “constitutionally invalid,” *Whole Woman's Health*, 579 U. S., at 607. This standard requires courts independently to review the legislative findings upon which an abortion-related statute rests and to weigh the law's “asserted benefits against the burdens” it imposes on abortion access. *Id.*, at 609. The District Court here, like the trial court in *Whole Woman's Health*, faithfully applied these standards. The Fifth Circuit disagreed with the District Court, not so much in respect to the legal standards, but in respect to the factual findings on which the District Court relied in assessing both the burdens that Act 620 imposes and the health-related benefits it might bring.

Under well-established legal standards, a district court's findings of fact “must not be set aside unless clearly erroneous, and the reviewing

Syllabus

court must give due regard to the trial court's opportunity to judge the witnesses' credibility." Fed. Rule. Civ. Proc. 52(a)(6). When the district court is "sitting without a jury," the appellate court "is not to decide factual issues *de novo*," *Anderson v. Bessemer City*, 470 U. S. 564, 573. Provided "the district court's account of the evidence is plausible in light of the record viewed in its entirety, the court of appeals may not reverse it even though convinced that had it been sitting as the trier of fact, it would have weighed the evidence differently." *Id.*, at 573–574. Viewed in light of this standard, the testimony and other evidence contained in the extensive record developed over the 6-day trial support the District Court's conclusion on Act 620's constitutionality. Pp. 321–323.

(b) Taken together, the District Court's findings and the evidence underlying them are sufficient to support its conclusion that enforcing the admitting-privileges requirement would drastically reduce the number and geographic distribution of abortion providers, making it impossible for many women to obtain a safe, legal abortion in the State and imposing substantial obstacles on those who could. Pp. 323–339.

(1) The evidence supporting the court's findings in respect to Act 620's impact on abortion providers is stronger and more detailed than that in *Whole Woman's Health*. The District Court supervised Does 1, 2, 5, and 6 for more than 18 months as they tried, and largely failed, to obtain conforming privileges from 13 relevant hospitals; it relied on a combination of direct evidence that some of the doctors' applications were denied for reasons having nothing to do with their ability to perform abortions safely, and circumstantial evidence—including hospital bylaws with requirements like those considered in *Whole Woman's Health* and evidence that showed the role that opposition to abortion plays in some hospitals' decisions—that explained why other applications were denied despite the doctors' good-faith efforts. Just as in *Whole Woman's Health*, that evidence supported the District Court's factual finding that Louisiana's admitting-privileges requirement serves no "relevant credentialing function." 579 U. S., at 613. The Fifth Circuit's conclusion that Does 2, 5, and 6 acted in bad faith cannot be squared with the clear-error standard of review that applies to the District Court's contrary findings. Pp. 324–336.

(2) The District Court also drew from the record evidence several conclusions in respect to the burden that Act 620 is likely to impose upon women's ability to access an abortion in Louisiana. It found that enforcing that requirement would prevent Does 1, 2, and 6 from providing abortions altogether. Doe 3 gave uncontradicted, in-court testimony that he would stop performing abortions if he was the last pro-

Syllabus

vider in northern Louisiana, so the departure of Does 1 and 2 would also eliminate Doe 3. And Doe 5's inability to obtain privileges in the Baton Rouge area would leave Louisiana with just one clinic with one provider to serve the 10,000 women annually who seek abortions in the State. Those women not altogether prevented from obtaining an abortion would face "longer waiting times, and increased crowding." *Whole Woman's Health*, 579 U.S., at 613. Delays in obtaining an abortion might increase the risk that a woman will experience complications from the procedure and may make it impossible for her to choose a non-invasive medication abortion. Both expert and lay witnesses testified that the burdens of increased travel to distant clinics would fall disproportionately on poor women, who are least able to absorb them. Pp. 336–339.

(c) An examination of the record also shows that the District Court's findings regarding the law's asserted benefits are not "clearly erroneous." The court found that the admitting-privileges requirement serves no "relevant credentialing function." 250 F. Supp. 3d 27, 87. Hospitals can, and do, deny admitting privileges for reasons unrelated to a doctor's ability safely to perform abortions, focusing primarily upon a doctor's ability to perform the inpatient, hospital-based procedures for which the doctor seeks privileges—not outpatient abortions. And nothing in the record indicates that the vetting of applicants for privileges adds significantly to the vetting already provided by the State Board of Medical Examiners. The court's finding that the admitting-privileges requirement "does not conform to prevailing medical standards and will not improve the safety of abortion in Louisiana," *ibid.*, is supported by expert and lay trial testimony. And, as in *Whole Woman's Health*, the State introduced no evidence "showing that patients have better outcomes when their physicians have admitting privileges" or "of any instance in which an admitting privileges requirement would have helped even one woman obtain better treatment," 250 F. Supp. 3d, at 64. Pp. 339–342.

(d) In light of the record, the District Court's significant factual findings—both as to burdens and as to benefits—have ample evidentiary support and are not "clearly erroneous." Thus, the court's related factual and legal determinations and its ultimate conclusion that Act 620 is unconstitutional are proper. P. 342.

THE CHIEF JUSTICE agreed that abortion providers in this case have standing to assert the constitutional rights of their patients and concluded that because Louisiana's Act 620 imposes a burden on access to abortion just as severe as that imposed by the nearly identical Texas law invalidated four years ago in *Whole Woman's Health v. Hellerstedt*, 579 U.S. 582, it cannot stand under principles of *stare decisis*. Pp. 344–358.

Syllabus

BREYER, J., announced the judgment of the Court and delivered an opinion, in which GINSBURG, SOTOMAYOR, and KAGAN, JJ., joined. ROBERTS, C. J., filed an opinion concurring in the judgment, *post*, p. 344. THOMAS, J., filed a dissenting opinion, *post*, p. 359. ALITO, J., filed a dissenting opinion, in which GORSUCH, J., joined, in which THOMAS, J., joined except as to Parts III–C and IV–F, and in which KAVANAUGH, J., joined as to Parts I, II, and III, *post*, p. 377. GORSUCH, J., *post*, p. 409, and KAVANAUGH, J., *post*, p. 428, filed dissenting opinions.

Julie Rikelman argued the cause for June Medical Services, LLC. With her on the briefs in both cases were *Travis J. Tu*, *Jessica Sklarsky*, *Anton Metlitsky*, *Yaira Dubin*, *Jeffrey L. Fisher*, *Bradley N. Garcia*, *Samantha M. Goldstein*, *Kendall Turner*, and *Jeremy Girton*.

Elizabeth B. Murrill, Solicitor General of Louisiana, argued the cause for Stephen Russo, Interim Secretary, Louisiana Department of Health and Hospitals. With her on the briefs in both cases were *Jeff Landry*, Attorney General of Louisiana, *Joseph Scott St. John*, Deputy Solicitor General, *Gene C. Schaerr*, *Erik S. Jaffe*, *Stephen S. Schwartz*, *Kathryn E. Tarbert*, *William S. Consovoy*, and *Jeffrey M. Harris*.

Deputy Solicitor General Wall argued the cause for the United States as *amicus curiae* in support of Stephen Russo, Interim Secretary, Louisiana Department of Health and Hospitals. With him on the brief in both cases were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Deputy Assistant Attorney General Mooppan*, *Christopher G. Michel*, *Benjamin W. Snyder*, *Mark R. Freeman*, *Michael S. Raab*, *Robert P. Charrow*, *Sean Keveney*, and *Paula Stannard*.[†]

[†]Briefs of *amici curiae* urging reversal in both cases were filed for the American College of Obstetricians and Gynecologists et al. by *Kimberly A. Parker* and *Skye L. Perryman*; for Catholics for Choice et al. by *Eugene M. Gelernter* and *Barbara Mullin*; for Federal Courts Scholars by *Elaine J. Goldenberg* and *Adam P. Barry*; for the Feminist Majority Foundation et al. by *Janice Mac Avoy*, *Jennifer L. Colyer*, *Leigh G. Rome*, *David S. Cohen*, and *Susan Frietsche*; for Former Federal Judges et al. by *Robert A. Long, Jr.*; for If/When/How: Lawyering for Reproductive Justice et

Opinion of BREYER, J.

JUSTICE BREYER announced the judgment of the Court and delivered an opinion, in which JUSTICE GINSBURG, JUSTICE SOTOMAYOR, and JUSTICE KAGAN join.

In *Whole Woman’s Health v. Hellerstedt*, 579 U. S. 582 (2016), we held that “[u]nnecessary health regulations that

al. by *Farah Diaz-Tello*, *Sara L. Ainsworth*, *Rebecca S. Engrav*, *Lauren J. Tsuji*, and *Ariel B. Glickman*; for the Lawyers’ Committee for Civil Rights Under Law et al. by *Kristen Clarke*, *Jon Greenbaum*, *Dariely Rodriguez*, *Vanita Gupta*, and *Michael Zubrensky*; for Medical Staff Professionals by *Robert M. Palumbos*, *Erin M. Duffy*, and *Sean Zabaneh*; for the National Health Law Program et al. by *Jane Perkins* and *Ms. Ainsworth*; for the National Women’s Law Center et al. by *Fatima Goss Graves*, *Gretchen Borchelt*, *Sunu Chandy*, *Michelle Banker*, and *Heather Shumaker*; for Organizations and Individuals Dedicated to the Fight for Reproductive Justice—Women With a Vision et al. by *Wesley R. Powell*, *Mary Eaton*, and *Michael J. Gottlieb*; for Planned Parenthood Federation of America et al. by *E. Joshua Rosenkranz* and *Rachel G. Shalev*; for Reproductive Justice Scholars by *Kelly M. Dermody*, *Tiseme G. Zegeye*, and *Madeline M. Gomez*; for Social Science Researchers by *Alan S. Gilbert* and *Leah R. Bruno*; for Tort Law Scholars by *Gary N. Frischling*; for Holly Alvarado et al. by *Michael J. Dell*; for Michele Coleman Mayes et al. by *Claudia Hammerman* and *Tanya S. Manno*; and for 197 Members of Congress by *Clyde G. Szyfer*. A brief of *amici curiae* urging vacatur in both cases was filed for Abby Johnson et al. by *Catherine W. Short*.

Briefs of *amici curiae* urging reversal in No. 18–1323 were filed for the State of New York et al. by *Letitia James*, Attorney General of New York, *Barbara D. Underwood*, Solicitor General, *Andrea Oser*, Deputy Solicitor General, and *Ester Murdukhayeva*, Assistant Solicitor General, and by the Attorneys General for their respective jurisdictions as follows: *Xavier Becerra* of California, *Phil Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Karl A. Racine* of the District of Columbia, *Clare E. Connors* of Hawaii, *Kwame Raoul* of Illinois, *Aaron M. Frey* of Maine, *Brian E. Frosh* of Maryland, *Maura Healey* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Gurbir S. Grewal* of New Jersey, *Hector H. Balderas* of New Mexico, *Ellen F. Rosenblum* of Oregon, *Josh Shapiro* of Pennsylvania, *Peter F. Neronha* of Rhode Island, *Thomas J. Donovan, Jr.*, of Vermont, *Mark R. Herring* of Virginia, and *Robert Ferguson* of Washington; for the American Bar Association by *Clifton S. Elgarten*, *Keith J. Harrison*, *Amanda Shafer Berman*, and *Judy Perry Martinez*; for the Ameri-

Opinion of BREYER, J.

have the purpose or effect of presenting a substantial obstacle to a woman seeking an abortion impose an undue burden on the right’” and are therefore “constitutionally invalid.” *Id.*, at 589–590 (quoting *Planned Parenthood of Southeastern Pa.*

can Civil Liberties Union et al. by Andrew D. Beck, Jennifer Dalven, Louise Melling, David D. Cole, Katie Schwartzmann, and Bruce Hamilton; for the Constitutional Accountability Center by Elizabeth B. Wydra, Brianne J. Gorod, and David H. Gans; for Constitutional Law Scholars et al. by Orin Snyder and Joshua S. Lipshutz; for the Information Society Project at Yale Law School by Priscilla J. Smith; and for LGBTQ Organizations by David J. Weiner, Andrew Tutt, Shannon P. Minter, Julianna S. Gonen, and Christopher F. Stoll.

Briefs of *amici curiae* urging affirmance in both cases were filed for the State of Arkansas et al. by Leslie Rutledge, Attorney General of Arkansas, Nicholas J. Bronni, Solicitor General, Vincent M. Wagner, Deputy Solicitor General, and Dylan L. Jacobs, Assistant Solicitor General, by Curtis T. Hill, Jr., Attorney General of Indiana, Thomas M. Fisher, Solicitor General, Kian J. Hudson, Deputy Solicitor General, and Julia C. Payne, Deputy Attorney General, and by the Attorneys General and other officials for their respective States as follows: Steve Marshall of Alabama, Mark Brnovich of Arizona, Ashley Moody of Florida, Christopher M. Carr of Georgia, Derek Schmidt of Kansas, Daniel Cameron of Kentucky, Jim Hood of Mississippi, Eric S. Schmitt of Missouri, Tim Fox of Montana, Doug Peterson of Nebraska, Wayne Stenehjem of North Dakota, Dave Yost of Ohio, Mike Hunter of Oklahoma, Alan Wilson of South Carolina, Jason Ravnsborg of South Dakota, Herbert H. Slatery III of Tennessee, Sean D. Reyes of Utah, and Patrick Morrissey of West Virginia; for the State of Idaho by Lawrence G. Wasden, Attorney General of Idaho, Brian Kane, Assistant Deputy Chief, and Cynthia L. Yee-Wallace, Deputy Attorney General; for the State of Texas by Ken Paxton, Attorney General of Texas, Jeffrey C. Mateer, First Assistant Attorney General, Kyle D. Hawkins, Solicitor General, and Heather Gebelin Hacker and Beth Klusmann, Assistant Solicitors General; for African American Pro-Life Organizations by C. Boyden Gray and Adam R. F. Gustafson; for the American Association of Pro-Life Obstetricians et al. by Bradley S. Tupi; for the American Center for Law and Justice et al. by Jay Alan Sekulow, Stuart J. Roth, Colby M. May, Walter M. Weber, Thomas P. Monaghan, Francis J. Manion, and Geoffrey R. Surtees; for Americans United for Life by Catherine Glenn Foster, Steven H. Aden, and Clarke D. Forsythe; for the Association of American Physicians and Surgeons, Inc., by Antony B. Kolenc; for the

Opinion of BREYER, J.

v. *Casey*, 505 U. S. 833, 878 (1992) (plurality opinion); alteration in original). We explained that this standard requires courts independently to review the legislative findings upon which an abortion-related statute rests and to weigh the

Center for Constitutional Jurisprudence by *John C. Eastman* and *Anthony T. Caso*; for the Christian Legal Society et al. by *Reed N. Smith* and *Kimberlee Wood Colby*; for the Eagle Forum Education & Legal Defense Fund by *Lawrence J. Joseph*; for the Ethics & Religious Liberty Commission of the Southern Baptist Conference et al. by *Alexander Dushku* and *R. Shawn Gunnarson*; for Family Research Council by *Jonathan F. Mitchell* and *Travis S. Weber*; for the Foundation for Moral Law by *Matthew J. Clark* and *Martin Wishnatsky*; for Illinois Right to Life by *Thomas Brejcha*, *Thomas Olp*, and *Joan M. Mannix*; for the Independence Law Center by *Randall L. Wegner*, *Jeremy L. Samek*, and *Curtis M. Schube*; for the Inner Life Fund et al. by *James L. Hirsen*, *Deborah J. Dewart*, and *Tami Fitzgerald*; for the International Conference of Evangelical Chaplain Endorsers by *Arthur A. Schulcz, Sr.*; for Louisiana State Legislators by *Kristen K. Waggoner*, *John J. Bursch*, *David A. Cortman*, *Kevin H. Theriot*, and *James A. Campbell*; for the National Institute of Family and Life Advocates et al. by *Harold J. Cassidy* and *Joseph R. Zakhary*; for Operation Rescue et al. by *Mathew D. Staver*, *Anita L. Staver*, *Horatio G. Mihet*, and *Ms. Short*; for Priests for Life et al. by *Robert Joseph Muise* and *David Yerushalmi*; for the Pro-Life Legal Defense Fund et al. by *Herbert W. Titus*, *William J. Olson*, *Jeremiah L. Morgan*, *Robert J. Olson*, *Joseph W. Miller*, and *J. Mark Brewer*; for Right to Life of Michigan by *William Wagner*, *Erin Elizabeth Mersino*, and *Katherine L. Henry*; for the Susan B. Anthony List by *John G. Knepper*; for the United States Conference of Catholic Bishops et al. by *Anthony R. Picarello, Jr.*, *Jeffrey Hunter Moon*, and *Michael F. Moses*; for Mary J. Browning by *Allan E. Parker, Jr.*, and *Ms. Browning, pro se*; for Sen. Josh Hawley by *Mr. Hawley, pro se*; for Melinda Thybault by *Mr. Parker* and *R. Clayton Trotter*; for 207 Members of Congress by *Ms. Foster* and *Mr. Aden*; and for 2,624 Women Injured by Abortion et al. by *Mr. Parker*, *Kathleen Cassidy Goodman*, *Mary Ann Randolph*, and *Mr. Trotter*.

Briefs of *amici curiae* urging affirmance in No. 18–1323 were filed for the Billy Graham Evangelistic Association et al. by *Kevin T. Snider*; for the CatholicVote.Org Education Fund by *Scott W. Gaylord*; for Former Abortion Providers et al. by *Linda Boston Schlueter*; for IBIS Reproductive Health et al. by *Jessica L. Ellsworth* and *Kaitlyn A. Golden*; for the Legal Center for Defense of Life by *Andrew L. Schlafly*; for the Louisiana

Opinion of BREYER, J.

law’s “asserted benefits against the burdens” it imposes on abortion access. 579 U. S., at 609 (citing *Gonzales v. Carhart*, 550 U. S. 124, 165 (2007)).

The Texas statute at issue in *Whole Woman’s Health* required abortion providers to hold “‘active admitting privileges at a hospital’” within 30 miles of the place where they perform abortions. 579 U. S., at 590 (quoting Tex. Health & Safety Code Ann. §171.0031(a) (West Cum. Supp. 2015)). Reviewing the record for ourselves, we found ample evidence to support the District Court’s finding that the statute did not further the State’s asserted interest in protecting women’s health. The evidence showed, moreover, that conditions on admitting privileges that served no “relevant credentialing function,” 579 U. S., at 613, “help[ed] to explain” the closure of half of Texas’ abortion clinics, *id.*, at 612. Those closures placed a substantial obstacle in the path of Texas women seeking an abortion. *Ibid.* And that obstacle, “when viewed in light of the virtual absence of any health benefit,” imposed an “undue burden” on abortion access in violation of the Federal Constitution. *Id.*, at 614; see *Casey*, 505 U. S., at 878 (plurality opinion).

In this case, we consider the constitutionality of a Louisiana statute, Act 620, that is almost word-for-word identical to Texas’ admitting-privileges law. See La. Rev. Stat. Ann. §40:1061.10(A)(2)(a) (West 2020). As in *Whole Woman’s Health*, the District Court found that the statute offers no

Family Forum et al. by Anita Y. Milanovich and Renee K. Carlson; for the National Right to Life Committee et al. by James Bopp, Jr., and Richard E. Coleson; and for Samaritan’s Purse by Frederick W. Claybrook, Jr., Steven W. Fitschen, James A. Davids, and David A. Bruce.

Briefs of *amici curiae* urging affirmance in No. 18–1460 were filed for Concerned Women for America by Teresa Stanton Collett; for Judicial Watch, Inc., by James F. Peterson and Meredith L. Di Liberto; and by Whole Woman’s Health et al. by Linda C. Goldstein and Jonathan Tam.

Timothy J. Newton and Kenneth W. Starr filed a brief for the Thomas More Society as *amicus curiae* in both cases.

Opinion of BREYER, J.

significant health benefit. It found that conditions on admitting privileges common to hospitals throughout the State have made and will continue to make it impossible for abortion providers to obtain conforming privileges for reasons that have nothing to do with the State's asserted interests in promoting women's health and safety. And it found that this inability places a substantial obstacle in the path of women seeking an abortion. As in *Whole Woman's Health*, the substantial obstacle the Act imposes, and the absence of any health-related benefit, led the District Court to conclude that the law imposes an undue burden and is therefore unconstitutional. See U. S. Const., Amdt. 14, § 1.

The Court of Appeals agreed with the District Court's interpretation of the standards we have said apply to regulations on abortion. It thought, however, that the District Court was mistaken on the facts. We disagree. We have examined the extensive record carefully and conclude that it supports the District Court's findings of fact. Those findings mirror those made in *Whole Woman's Health* in every relevant respect and require the same result. We consequently hold that the Louisiana statute is unconstitutional.

I

A

In March 2014, five months after Texas' admitting-privileges requirement forced the closure of half of that State's abortion clinics, Louisiana's Legislature began to hold hearings to consider a substantially identical proposal. Compare *Whole Woman's Health*, 579 U. S., at 590–591, with *June Medical Services LLC v. Kliebert*, 250 F. Supp. 3d 27, 53 (MD La. 2017); Record 11220. The proposal became law in mid-June 2014. 2014 La. Acts p. 2330.

As was true in Texas, Louisiana law already required abortion providers *either* to possess local hospital admitting privileges *or* to have a patient “transfer” arrangement with a physician who had such privileges. Compare *Whole Wom-*

Opinion of BREYER, J.

an's Health, 579 U. S., at 609 (citing Tex. Admin. Code, tit. 25, § 139.56 (2009)), with former La. Admin. Code, tit. 48, pt. I, § 4407(A)(3) (2003), 29 La. Reg. 706–707 (2003). The new law eliminated that flexibility. Act 620 requires any doctor who performs abortions to hold “active admitting privileges at a hospital that is located not further than thirty miles from the location at which the abortion is performed or induced and that provides obstetrical or gynecological health care services.” La. Rev. Stat. Ann. § 40:1061.10(A)(2)(a).

The statute defines “active admitting privileges” to mean that the doctor must be “a member in good standing” of the hospital’s “medical staff . . . with the ability to admit a patient and to provide diagnostic and surgical services to such patient.” *Ibid.*; La. Admin. Code, tit. 48, pt. I, § 4401. Failure to comply may lead to fines of up to \$4,000 per violation, license revocation, and civil liability. See *ibid.*; La. Rev. Stat. Ann. § 40:1061.29.

B

A few weeks before Act 620 was to take effect in September 2014, three abortion clinics and two abortion providers filed a lawsuit in Federal District Court. They alleged that Act 620 was unconstitutional because (among other things) it imposed an undue burden on the right of their patients to obtain an abortion. App. 24. The court later consolidated their lawsuit with a similar, separate action brought by two other clinics and two other abortion providers. (Like the courts below, we shall refer to the two doctors in the first case as Doe 1 and Doe 2; we shall refer to the two doctors in the second case as Doe 5 and Doe 6; and we shall refer to two other doctors then practicing in Louisiana as Doe 3 and Doe 4.)

The plaintiffs immediately asked the District Court to issue a temporary restraining order (TRO), followed by a preliminary injunction that would prevent the law from taking effect. *June Medical Services LLC v. Caldwell*, No. 14–cv–00525 (MD La., Aug. 22, 2014), Doc. No. 5.

Opinion of BREYER, J.

The State of Louisiana, appearing for the defendant Secretary of the Department of Health and Hospitals, filed a response that opposed the plaintiffs' TRO request. App. 32–39. But the State went on to say that, if the court granted the TRO or if the parties reached an agreement that would allow the plaintiffs time to obtain privileges without a TRO, the court should hold a hearing on the preliminary injunction request as soon as possible. *Id.*, at 43. The State argued that there was no reason to delay a ruling on the merits of the plaintiffs' undue-burden claims. *Id.*, at 43–44. It asserted that there was “no question that the physicians had standing to contest the law.” *Id.*, at 44. And, in light of the State's “overriding interest in vindicating the constitutionality of its admitting-privileges law,” the plaintiffs' suit was “the proper vehicle” to “remov[e] any cloud upon” Act 620's “validity.” *Id.*, at 45.

The District Court declined to stay the Act's effective date. Instead, it provisionally forbade the State to enforce the Act's penalties, while directing the plaintiff doctors to continue to seek conforming privileges and to keep the court apprised of their progress. See TRO in No. 14–cv–00525, Doc. No. 31, pp. 2–3; see, *e. g.*, App. 48–55, 64–82. These updates continued through the date of the District Court's decision. 250 F. Supp. 3d, at 77.

C

In June 2015, the District Court held a 6-day bench trial on the plaintiffs' request for a preliminary injunction. It heard live testimony from a dozen witnesses, including three Louisiana abortion providers, June Medical's administrator, the Secretary (along with a senior official) of the State's Department of Health and Hygiene, and three experts each for the plaintiffs and the State. *Id.*, at 33–34. It also heard from several other witnesses via deposition. *Ibid.* Based on this evidentiary record, the court issued a decision in January 2016 declaring Act 620 unconstitutional on its face and